Part C
Residential Development



C

C.1 Dwelling Houses and Dual Occupancies

C.2 Attached Dwellings and Multi-Dwelling Housing

C.3 Residential Flat Buildings

C.4 Residential Subdivision

C.5 Boarding Houses

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C.1 Dwelling Houses and Dual Occupancies

1.1 Objectives for Dwelling Houses and Dual Occupancies

Objectives

The objectives for dwelling houses and dual occupancies are to:

1 Provide dwellings in landscaped lots.

2 Ensure new dwellings and alterations & additions to existing dwellings are well designed and compatible with the surrounding context and enhance the streetscape within the area.

3 Achieve a reasonable level of amenity for both development sites and neighbouring dwellings.

1.2 Streetscape

Objectives

The objectives for streetscape are to:

1 Achieve development of a scale and appearance which is in keeping with the predominant traditional or emerging street and neighbourhood character.

2 Ensure the existing landscape character of the area is maintained and enhanced.

3 Ensure the existing topography of the site is reinforced by dwelling design.

4 Ensure that dwellings provide passive surveillance, resident interaction and address the street or adjacent public open space.

5 Ensure that garages, carports and driveways do not dominate the dwelling or streetscape.

6 Ensure that satellite dishes do not visually detrimentally affect the streetscape.

Provisions

a) Developments on sites with two or more frontages should address both frontages to promote interaction and add diversity to the streetscape.

b) All housing is to address the street and offer passive surveillance to the street.

c) Attached Dual Occupancies should not have a symmetrical appearance when viewed from the street and are to be designed as one building structure, both physically and in appearance.

1.3 Setbacks

Objectives

The objectives of setbacks are to:

1 Maintain the predominant street setback.

2 To enhance and maintain vegetation corridors through landscaping within front and rear gardens and side boundaries.

3 Side and rear setbacks are to provide building separation, sunlight, landscaping, ventilation, public views (if appropriate) for the dwelling and its neighbours.

Provisions

1.3.1 Front setbacks

a) The front setback of the building shall be consistent with the prevailing setback along the street (refer Diagram No.1). Where there is no predominant setback within the street, the setback should be a minimum of 7.5m. Irregular sites may be considered on their merits.

b) The secondary street setback for corner allotments is to be a minimum of 2.0m (refer Diagram No.1).

c) The front setback is to be free of structures such as swimming pools and ancillary elements such as rainwater tanks and air conditioning units. In certain circumstances carports and garages may be permitted in the front setback (see Section 1.9 Car Parking).

d) In general, no part of a building or above ground structure may encroach into a setback zone. Exceptions are awnings, balconies, blade walls, bay windows and other articulation elements up to a maximum of 500mm.

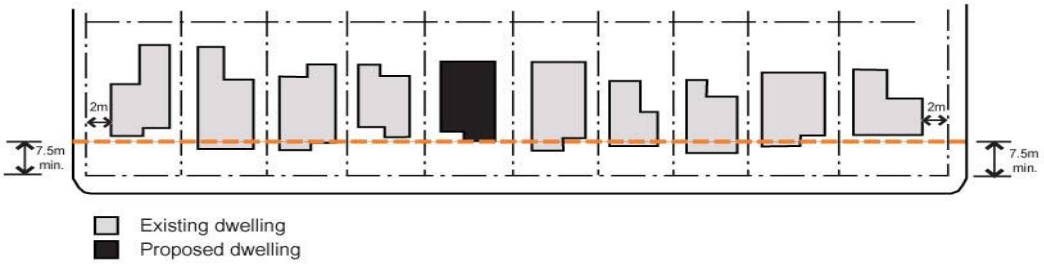


Diagram No. 1 – Predominant street setback

1.3.2 Side setbacks

a) Side setbacks are to be a minimum of:

I. 1.2m for a single storey dwelling

II. 1.5m for a two storey dwelling.

Irregular sites may be considered on their merits.

b) First floor additions are to meet the above setback requirements. Where it can be demonstrated that there are no unreasonable amenity impacts, additions can maintain the existing setback of the floor below.

c) A lesser setback may be considered for open carports, detached garages, steps and landings no more than 300mm above ground level (finished), where it can be demonstrated that there will be no unreasonable amenity impacts.

1.3.3 Setbacks in a detached dual occupancy

a) The setback between dwellings in a detached dual occupancy is to be a minimum of 7m, with the exception of wide blocks, where both dwellings are placed side-by-side and face the same street, dwellings are to have 3m between them.

1.3.4 Rear setbacks

a) A minimum rear setback for dwelling houses of 8m or 25% of the site depth (whichever is greater) is to be provided for sites up to 1000m^2 (refer to Diagram 2). The existing predominant rear setback and site constraints, especially for irregular sites, may be taken into account.

b) A minimum rear setback for dwelling houses of 10m or 35% of the site depth (whichever is greater) is to be provided for sites more than 1000m^2 (refer to Diagram 2). The existing predominant rear setback and site constraints, especially for irregular sites, may be taken into account.

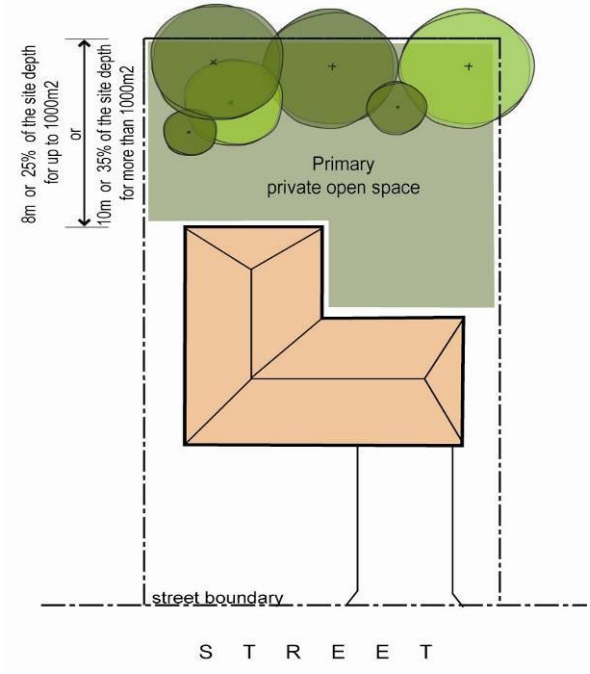


Diagram No. 2 - Rear setbacks

c) A minimum rear setback of 6m for dual occupancies.

d) Outbuildings, garages, carports, swimming pools, spas, decks and terraces may be located within the rear setback area.

e) If a site adjoins bushland a greater setback may be required, see Part H - Bushland Protection.

1.4 Fences

Objectives

The objectives for fences are to:

1 Contribute positively to the streetscape character and design of the dwelling house.

2 Provide privacy and security to its residents.

3 Preserve public views across a property, where available, by utilising open style fencing.

Provisions

1.4.1 Front fences

Solid fences

a) permitted up to 900mm above ground level (existing) on the front boundary.

Part solid and predominantly see through fences

b) permitted up to 1200mm above ground level (existing) on the front boundary, with a maximum solid portion 600mm high.

c) permitted up to 1800mm above ground level (existing) setback at least 1m from the front boundary with the solid portion no higher than 600mm.

d) for the see through portion, the width of the spacing between palings must be at least the same as the width of the palings.

On major roads

e) major roads include the Pacific Hwy, Longueville Rd from Pacific Hwy to Epping Rd, Epping Rd, Burns Bay Rd south of Centennial Ave, Centennial Ave from Burns Bay Rd to Epping Rd and up to Mowbray Rd, The River Rd system (includes Penrose St east of Burns Bay Rd, Bridge St from River Rd west to Penrose St, River Rd West, Northwood Rd from River Rd West to River Rd East, River Rd East), Mowbray Rd and Greenwich Rd north of River Rd.

f) a solid front fence to these major roads may be a maximum of 1.8m above ground level (existing). For acoustic reasons Council may consider a height up to 2m, and such fences may be of solid masonry construction for acoustic reasons.

Materials/retaining walls/overland flow

g) front and side return fence material is to be to Council's satisfaction and is not to be lapped & capped timber or powder coated metal ("Colorbond") fencing.

h) If required, retaining walls are to be integrated into the design of the fence.

i) in areas of overland flow, fencing is to be of open construction and permit water flow.

Splays

j) Splays may be required in accordance with the relevant Australian Standards for fences over 900mm, on major roads, corner allotments, where garages are in proximity to the front fence and on bicycle routes (see Lane Cove Bicycle Plan).

1.4.2 Side and rear fences

a) Side fences behind the building line are to be a maximum of 1.8m in height above ground level.

b) For corner allotments, the side return fences for the secondary street frontage is to match the height of the front fence back to the front building line.

c) Powder coated metal ("Colorbond") fences are not permitted on corner blocks.



Diagram No.3 - Front/side fence relationship

1.4.3 Fences on sites adjoining bushland

a) Fences on sites adjoining a bushland reserve are to be constructed of cyclone wire, steel posts or the like, so as not to impact upon the continuity of the bushland into the residential allotment.

b) Fencing colour is to blend with the adjoining bushland. A white fence is prohibited.

1.5 Landscaped Area

Objectives

The objectives for landscaped area are:

1 To provide privacy and amenity.

2 To retain and provide for significant vegetation, particularly large and medium sized trees and to provide continuous vegetation corridors.

3 To conserve significant natural features of the site.

4 To assist with on-site stormwater management.

Provisions

a) A minimum of 35% of the site is to be landscaped area. *Part J – Landscaping and Tree Preservation* specifies the minimum dimension required for landscaped area.

b) Proposals should seek to retain significant natural features on the site including mature trees, rocky outcrops and other major vegetation stands (including continuous vegetation corridors to the rear) by careful design of the dwelling and other structures.

c) The landscaped area should be effectively distributed on the site to minimise the dominance of buildings, structures and paving when viewed from the street, public places and surrounding properties.

d) Landscape plans for dual occupancies are to show any vegetation being replaced, and screening for privacy and visual amenity.

e) Landscaping at front boundaries shared with bicycle routes should be less than 900mm in height and should not impede pedestrian and bicycle routes or reduce visibility to these pathways.



Diagram No. 4 – Continuous vegetation corridor at rear of properties

1.6 Cut and Fill

Objectives

The objectives for cut and fill in low density residential developments are to:

1 Retain the natural ground levels as much as possible of a site and its existing landforms particularly in relation to the street or adjacent private open space areas.

2 To achieve reasonable landscaping within development.

3 To minimise the extent of cut and fill and its impact along side boundaries.

4 To create a consistent relationship between the dwelling and the street.

5 To ensure that excavation and filling of a site does not result in unreasonable amenity impacts to adjoining dwellings.

6 To minimise change to water run-off patterns.

Provisions

a) All dwellings are to relate to the existing topography of the land at the time of the adoption of this DCP.

b) The area of the site contained within the building footprint can be excavated or filled only where it is necessary to reasonably construct a dwelling on steeply sloping sites.

c) All dwellings are to adopt a split level approach to the design of the house to minimise excavation and fill and to achieve a design response that relates to the sloping topography of the site.

d) Development is limited to a maximum depth of excavation or fill of 1m at any point on the site unless it is demonstrated that the site's slope is too steep to reasonably construct a 2 storey dwelling with this extent of excavation.

e) In such circumstances, Council may consider increasing the depth of excavation between the underside of the lowest floor to any point on the site where:

   I. large exposed undercroft areas are not created

   II. the excavation does not create adverse impacts on the stability or amenity of adjoining properties or the public domain.

f) Excavation or fill is not to result in the loss of any significant mature trees within the side, front or rear boundary setbacks.

1.7 Building Design

Objectives

The objectives are to:

1 Ensure new dwellings and alterations and additions to existing dwellings reinforce the typical bulk and scale of existing dwellings within the street and the area.

2 Ensure that alterations and additions to existing dwellings maintain the integrity of the design and style of the existing building.

3 Ensure elevations to the street and public domain are well proportioned and designed.

4 Minimise impact in terms of overshadowing, loss of privacy, light spillage to adjoining properties, loss of views and amenity.

Provisions

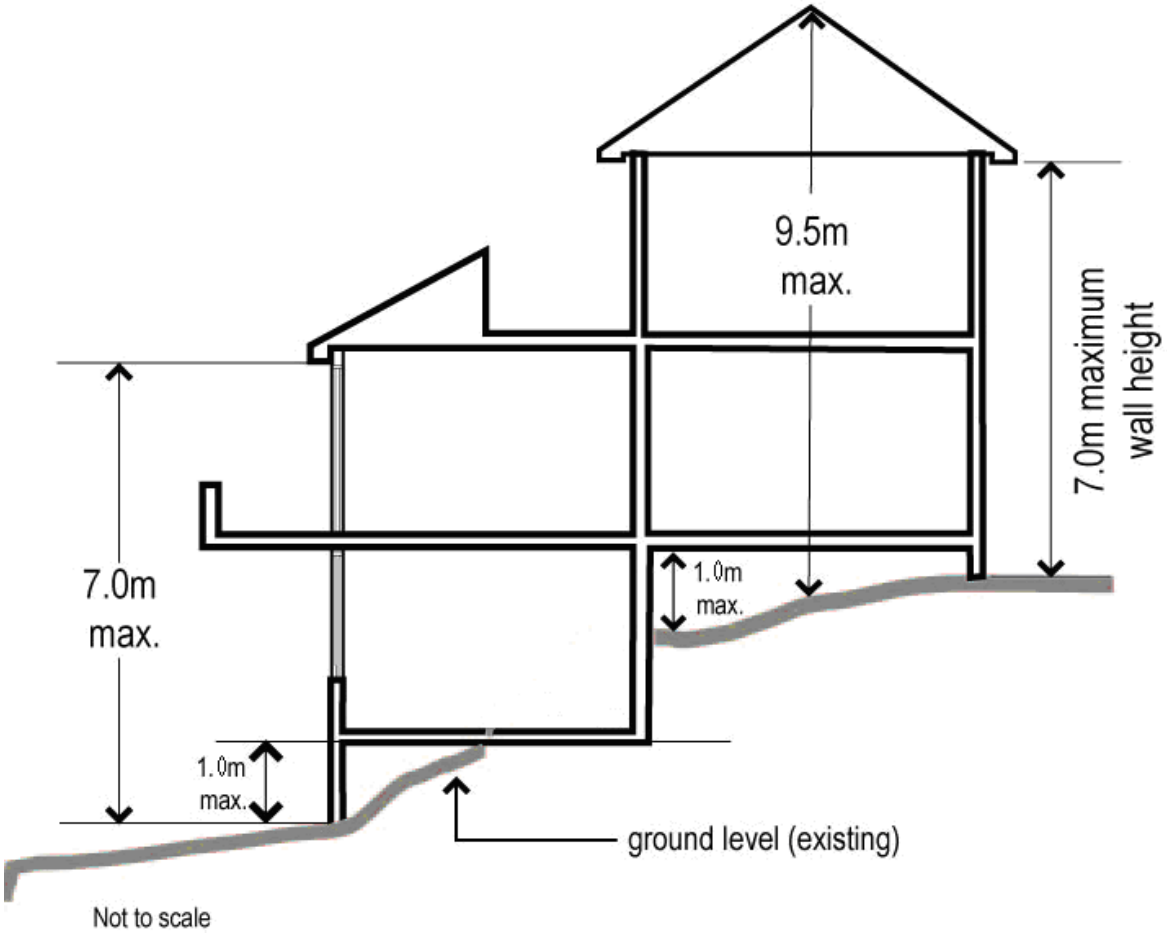


Diagram No. 5 - Dwelling House Height

1.7.1 Height

a) The maximum wall height to the underside of eaves for any floor above ground level (existing) is 7.0m to minimise the bulk and massing.

b) The maximum height to the underside of undercroft areas above ground level (existing) is to be 1.0m. Refer to controls relating to cut and fill for additional requirements.

c) The maximum height of a parapet for a flat roof structure is to be 600mm above its maximum wall height.

d) The maximum height for a pitched roof house is 9.5m above ground level (existing).

e) A maximum of 2 storeys is permissible at any point above ground level (existing). No building will be permitted to have an appearance (in elevation) exceeding three storeys in height.

f) In the case of a detached dual occupancy, the dwelling furthest from the street is to be single storey.

1.7.2 Architectural character and articulation

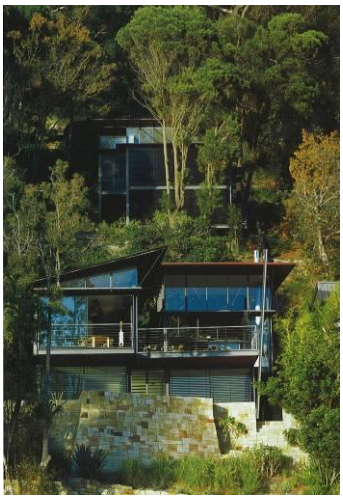
a) Dwellings should provide a minimum of one major window from a habitable room directly overlooking the street or public open space area.

b) Attics will only be considered within existing roof forms. Attics in Mansard roofs are prohibited.

c) Where habitable attic space is provided within a roof form then minor dormer windows are to be provided located away from the street frontage. Dormers are to be proportioned vertically and not horizontally.

d) Metal deck roofs are to be a mid to dark range colour.





Photos 1 and 2 - Examples of good contemporary housing - efficient and thoughtful use of topography in dwelling design, natural materials and recessive colours used.



Photo 3 - The use of feature materials to express architectural design elements is encouraged.

1.8 Amenity

Objectives

The objectives for amenity are to:

1 To provide reasonable solar access to habitable rooms and recreational areas of new and existing developments.

2 To provide reasonable acoustic and visual privacy for neighbouring properties.

3 Minimise overlooking between adjoining dwellings and their private open spaces.

Provisions

1.8.1 Solar access and overshadowing

a) Dwellings or additions shall be so designed and orientated so as to give reasonable sunlight to the habitable rooms and recreational areas of the subject site and adjoining premises between 9.00am and 3.00pm on 21st June. In particular, dwellings are to be so located and designed that a portion of windows of neighbouring dwellings receive at least 3 hours of sun between 9am and 3pm on 21st June.

b) Council may accept reduction in solar access for the subject site and adjacent development if the topography and lot orientation is such that the 3 hour standard is considered unachievable.

c) Where adjacent dwellings and their open space already receive less than 2 hours of sun then new development should seek to maintain this solar access where practicable.

1.8.2 Privacy – Visual and Acoustic

a) Dwellings or additions shall be designed and orientated so that windows, balconies and decks are not situated directly opposite windows of the habitable rooms of any adjoining dwellings, unless privacy can be addressed.

b) Roof terraces and decks above the upper storey are prohibited.

c) Elevated decks, terraces or balconies greater than 1m above ground level (existing) to living areas are not to exceed a maximum depth of 3.0m. Deeper decks may be considered if privacy to adjoining properties is addressed.

d) The noise generated by mechanical equipment of any sort must not exceed the background noise level by more than 5dB (A) when measured in or on the lot adjacent to the equipment. Where sound levels are exceeded, sound proofing measures will be required.

1.8.3 Private open space

a) Where possible all dwellings are to have an area of private open space that receives northerly sun in winter.

b) Where possible private open space is to be located directly accessible from a major living area within the dwelling and be on the same level as the living space or within 500mm of the floor level.

c) Private outdoor open space can include a garden, terrace, paved area, deck or courtyard.

d) The minimum area of one area of private open space per dwellings is 24m^2 with a minimum depth of 4m and a maximum gradient of 1:50.

1.9 Car parking

Objectives

The objectives for car parking are:

1 To provide off street parking for residents.

2 To ensure that the design of car parking structures is consistent with the dwelling and has minimal impact on the streetscape.

Provisions

(Note: For the purpose of floor area exemption from FSR calculation, a double garage is a maximum of 40m^2).

a) Carports are permitted within the front setback areas where:

I. The carport has an open design and has minimal impact on the streetscape

II. The carport does not have a trafficable roof

III. Open security gates (with a minimum of 50% openings) are permitted

IV. The carport posts are to be setback a minimum of 1.0m from the street alignment (refer Diagram 6).

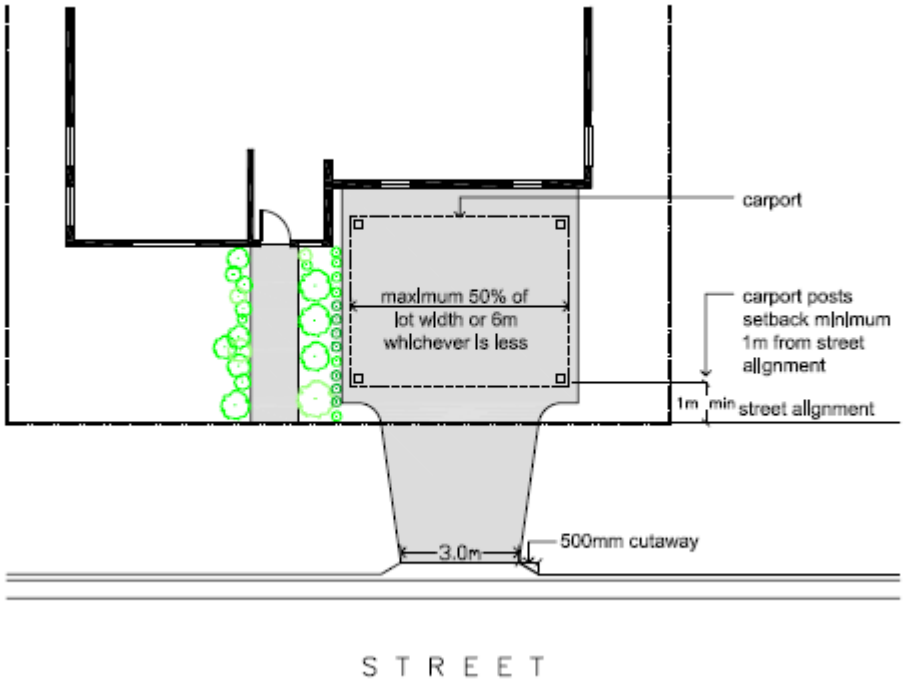


Diagram No. 6 – Carport width and location

b) Garage doors are not to be installed on carports.

c) On sloping sites, garages may be permitted in front of the building line if at least two thirds of the garage is below ground level (existing). The garage shall have a minimum setback of 1m from the street alignment and not have a trafficable roof.

d) Where a water or bushland view is available beyond the carport to the public domain, then the carport design should be open in design and maximise the view opportunities.

e) Garages and carports facing the street should not exceed 50% of the lot width or 6.0m, whichever is lesser (see Diagram 6).

f) Materials for garage doors are to be sympathetic to the character of the street and the design of the dwelling, and are to be solid.

g) Garage roofs are to be non-trafficable.

1.9.1 Driveways and pathways

a) Driveways are to have a width of 3m at the kerb. Where there are design limitations, special consideration can be given to wider driveways (in accordance with the relevant Australian Standards).

b) 500mm cutaways are required on each side of the driveway where it meets the road (see Diagram 6).

c) The material of the driveway from the lot boundary to the street carriageway is to match the adjacent footpath materials.

d) Materials for the driveways, pathways or carport hardstands within the lot are to be concrete, small unit pavers, or consolidated gravel or granite, or other semi-permeable material. For pathways natural stone is also acceptable.

e) Colours of driveways and pathway to the dwelling are to be muted and blended with the colours of the landscape and dwelling. Bold colours such as red, blue or green are prohibited.



Photo 4 - Use of different materials and colours to break up lengthy driveway.



Photo 5 - Blend of driveway and footpath materials minimises the impact of driveways.



Photo 6 - Use of pavers for pathway treatment to blend in with landscape of the dwelling.

1.9.2 Vehicular access

a) Driveways and access ramps are to be designed in accordance with the relevant Australian Standards.

b) Garage and carport entries are to be located from laneways wherever possible or secondary street frontages in the case of corner lots.

c) Driveways for battle axe allotments should be designed to ensure that vehicles can enter and leave the lot/s in a forward direction. The minimum width of a battle axe carriageway is to be 3m.

1.10 Ancillary development

Ancillary developments are outbuildings and structures that are ancillary to and generally detached from the main dwelling. These elements should be small scale and visually compatible with the design of the dwelling in form, colours and materials. Examples of ancillary development are workshops, sheds, cubby houses, pools, tennis courts etc. Ancillary development should be considered as part of the preliminary design of the dwelling and site to minimise visual impact from public areas.

Objectives

The objectives for ancillary development are to:

1 Provide for ancillary development that enhances the amenity of residents without compromising the amenity of adjoining dwellings or the area.

2 Ensure that materials and colours are compatible with the surrounding natural environment and the dwelling.

3 Minimise visibility from public spaces.

4 Minimise acoustic impacts.

5 Ancillary development is to respond to site constraints i.e. topography, mature vegetation.

Provisions

1.10.1 Private Swimming Pools

a) Swimming pools and spas are to be located behind the front building line and not on elevated decks.

b) Applications for swimming pools and spas will be considered by Council on the basis of the provisions of The *Swimming Pools Act, 1992*, latest amendment, the Building Code of Australia, the relevant Australian Standards and the provisions of this Code.

c) Pools and spas should not adversely affect the amenity and outlook of the neighbourhood particularly when viewed from waterways and foreshore areas.

d) The waterline of the pool should be no closer than 3m to any dwelling and no closer than 1m from a side or rear boundary.

e) Other than on steeply sloping sites, the coping of the pool should relate to ground level (existing) adjacent to the dwelling and not exceed 1.0m as the land falls away from the pool.

f) On steeply sloping sites, the coping of the pool is not to be more than 1.8m above the ground level (existing).

g) Where the coping of the pool is above ground level (existing) then the setback from the lot boundary is to be at a ratio of 1:1 to ensure the raised area of the pool does not impact on the amenity of adjoining neighbours.

h) Pool height of greater than the ground level of adjoining dwellings may be permitted subject to privacy impact assessment on adjoining dwellings.

i) Lighting if installed, to be arranged in such a manner as not to interfere with the amenity of the neighbourhood.

j) The pool is to be kerbed and/or drained to prevent surface water gaining access to the pool or to the adjoining properties. Swimming pools must not adversely affect the existing stormwater management system.

k) Pools are to be located at least 3 m from the trunk of a tree over 5 m in height, which is required to be retained on the site or is located on a neighbouring property.

l) The pool pump/filter is to be located as far away as practicable from neighbouring dwellings and is to be enclosed in an acoustic enclosure that limits noise generated by the pump to not greater than 5dB(A) above the background noise level, measured at the boundary.

m) To achieve net zero, new swimming pool heating systems should preferably not utilise gas heating.

1.10.2 Tennis Courts

a) Tennis courts will only be considered by Council where they do not require extensive cut and fill or the removal of significant trees.

b) A tennis court shall be surrounded by a fence at least 3.65 m high, constructed of approved materials, in a recessive colour, and shall be kept in such repair as to be reasonably capable of preventing balls escaping onto adjoining properties.

c) Fences to tennis courts are to be at least 3.0m from habitable rooms of adjoining properties.

d) Courts are not to be illuminated beyond the hours of use between 7 am and 8 pm daily.

1.10.3 Outbuildings

a) Outbuildings (including detached garages) are to be of a design, and use materials and colours, compatible with the locality.

b) Outbuildings shall not exceed one storey up to a maximum of 3.6m in height. The maximum external wall height is 2.4m.

c) Consideration may be given to proposals having a maximum height in excess of 3.6m where the proposal is sited on sloping ground, has a minimum setback of 900mm from the boundaries and Council is satisfied that the proposal will not materially affect the amenity of any adjoining site.

d) The total area of outbuildings is not to exceed 50m^2.

e) Outbuildings are to be located behind the front building line of the dwelling (except in the case of carports or garages in certain circumstances).

f) Windows in outbuildings are to be located a minimum of 900mm from side or rear boundaries.

g) Outbuildings are not to be located in view corridors and are not to be used as a dwelling.

h) Attics in outbuildings are to be fully contained in the existing roof, accessed only by pull-down ladders and are not to contain windows.

1.11 Inclinators

a) Inclinators are to be sited and screened to avoid adverse impacts on the natural environment and the amenity of adjoining dwellings.

b) Inclinators are to be situated so that the rail is as close to the ground level (existing) as possible and shall be no closer than 1.5m from any side boundary.

c) Inclinator length must be kept to a minimum.

d) Suitable screening and/or screening by planting with suitable mature plants shall be provided. Details of screening and/or planting shall be submitted and approved prior to the release of the Construction Certificate.

e) Inclinators shall be painted in an environmentally sympathetic colour.

f) The following requirements are applicable to its installation and usage:

   I. The L MAX noise level shall not exceed 60dB (A) when measured in immediate vicinity of the external structure of any adjoining premises.

   II. The rail car/cage shall be of open design with a maximum height of 1m above car/cage floor level.

   III. The track for the inclinator shall be continuously welded and the welds ground smooth.

   IV. The inclinator shall be fitted with noise reduction buffers so that no metal to metal impacts during its operation and these buffers are to be maintained for the duration of the inclinator's life.

g) All sites with an inclinator must also contain stairs as an alternative route.

h) Prior to the issue of an Occupation Certificate for the dwelling a certificate is to be provided from the Work Cover Authority certifying that the inclinator complies with their requirements.

1.12 Battleaxe Allotments

A battleaxe allotment (also referred to as a hatchet-shaped allotment) generally has no direct frontage to a public road and relies on a legally-created right-of-way, carriageway or driveway for vehicular access to and from the nearest public road.

A battleaxe allotment is typically located at the rear of one or more of the 'parent' allotments and is the result of a re-subdivision of that allotment.

While this section applies to battleaxe development the generic controls of the Lane Cove Development Control Plan 2010 still apply.

1.12.1 Site Planning Elements – New Dwelling

Notwithstanding other relevant provisions of this DCP, proposals for new dwellings on existing or proposed battleaxe lots will be assessed on their merits having regard to the following matters:-

Objectives

The objectives for site planning elements for new dwellings is to:

1 Achieve reasonable and equitable view-sharing and inter-allotment privacy arrangements by way of careful building design; careful location of facing windows, decks and other design elements; and landscaping which reflects and responds to the particular characteristics of the subject site.

2 Acknowledge the legal rights of the owner of the new battleaxe lot to construct a dwelling house on that lot, subject to compliance with the Lane Cove LEP, BCA and BASIX requirements.

Provisions

a) Setbacks from boundaries will be determined having regard to the results of a detailed site analysis. Setbacks will be determined in accordance with the relevant provisions of this DCP. Where compliance with provisions is not achievable, site specific determinations on setbacks (based on site averages) can be made by Council.

1.12.2 Site Planning Elements – Subdivision Only

Provisions

a) As a minimum, applications for a typical battleaxe subdivision (one new lot) must be accompanied by a site plan and/or Statement of Environmental Effects, plus pre-DA report, that demonstrate that the following matters have been covered in the design:-
   - Compliance with the minimum LEP Lot Size area and dimensional standards;
   - The ability of the site to be connected to all necessary utility services;
   - The ability of the site to retain and / or manage stormwater, including flows which might traverse adjoining downstream properties; and
   - Vehicular and pedestrian access from the nearest public road.

1.12.3 Access

Provisions

a) The minimum lot size for any new battleaxe lot shall be as set out on the Lot Size Map of the Lane Cove LEP. In calculating the area of a lot resulting from a battleaxe subdivision,

the area of any accessway, right-of-carriageway or the like is to be excluded in the site area calculations.

b) The maximum permissible grades for the access handles are to comply with the relevant Australian Standards.

c) Site Planning must provide a suitable turning area to enable vehicles to turn and exit the site in a forward direction.

d) To ensure that the creation of battle axe allotments does not result in additional vehicular crossings on classified roads.

1.12.4 Stormwater Management

Provisions

a) The management of stormwater flows from a new battleaxe lot to existing downstream lots may involve easements between the respective owners, if so copies of such agreements are to be submitted with the subject development application.

b) Stormwater runoff from access handles must be directed to kerbs or central dish drains and thence to a stormwater system that complies with *Part O – Stormwater Management* of Lane Cove Council's Development Control Plan.

c) On-site stormwater detention may be required for developments on battleaxe blocks for further details refer to *Part O – Stormwater Management* of Lane Cove Council's Development Control Plan.

C.2 Attached Dwellings and Multi-Dwelling Housing

Attached dwellings broadly refer to terrace style dwellings on separate Torrens title allotments. Multi-dwelling housing broadly refers to townhouses and villa houses on strata titled allotments.

2.1 General Objectives

Objectives

The objectives for attached dwellings and multi-dwelling housing are to ensure:

1 Development is compatible and complementary to the visual and environmental character of surrounding residential areas.

2 There is a variety of the housing stock within the Municipality.

3 The protection of significant natural landscape features.

4 Housing is provided on low maintenance lots.

2.2 Site Area and Frontage

Provisions

a) Attached dwelling and multi-dwelling housing proposals require:

I. A minimum site area of 1,000m^2 per development; and

II. A minimum site width at the front building line of 20m.

b) in the residential block located west of Girraween Avenue, attached dwellings and multi-dwelling housing proposals require:

I. A minimum site area of 750m^2 per development; and

II. A minimum site width at the front building line of 17m.

c) An average site area 250sqm per attached dwelling or multi-dwelling unit (including common areas) is required.

2.3 Streetscape

Objectives

The objectives for streetscapes are:

1 To ensure the existing topography and landscape setting are enhanced and reinforced by new development.

2 To achieve development of a scale and appearance which is in keeping with the predominant traditional or emerging street and neighbourhood character.

3 To ensure that the development provides passive surveillance and addresses the street

or adjacent public open space.

4 To achieve an appropriate human scale and enclosure to the street.

5 To encourage attractive street frontages and improve pedestrian amenity.

6 To enhance and maintain vegetation corridors.

Provisions

a) New buildings are to recognise and respond to the lot pattern and rhythm of dwellings within the street.

b) Dwellings are not to be positioned over driveways to basement car park where this results in an unacceptable impact on the visual amenity and continuity of the streetscape.

c) Carports or garages are not permitted within the street setback.

2.4 Setbacks

Objectives

The objectives for setbacks are to:

1 Provide setbacks that complement the streetscape, allow flexibility in the siting of the buildings and control the balance of built form to landscape.

2 Provide open space for recreation.

3 Provide landscape to offer a visual buffer between dwellings.

4 Achieve a high level of amenity for dwellings, neighbouring dwellings and the public domain.

5 Ensure that each lot provides deep soil areas and landscaped private open space.

Provisions

2.4.1 Street setback

This is also the front setback for the dwelling addressing the street.

a) It is to be a minimum of 6.0m except in R2 zones where the setback is to be 7.5m.

b) The secondary street setback for corner allotments is to be a minimum of 2.0m.

c) In general, no part of a building or above ground structure may encroach into a setback zone. Exceptions are awnings, balconies, blade walls, bay windows and other articulation elements up to a maximum of 500mm.

2.4.2 Front setback:

a) A minimum of 2.0m for the dwellings within the development (refer to Diagram No. 7).

b) Basement car parks are not to extend beyond the building envelope into the front setback.

2.4.3 Side setback

This refers to setbacks from both, site side boundaries and dwellings within a development (refer to Diagram No. 7). Attached dwellings do not need to comply where they attach to another dwelling within the development.

a) A minimum of 1.2m for a single storey dwelling.

b) A minimum of 1.5m for a two storey dwelling.

2.4.4 Rear setback

This refers to setbacks from both, the site rear boundary and dwellings within a development.

a) A minimum of 3.0m.

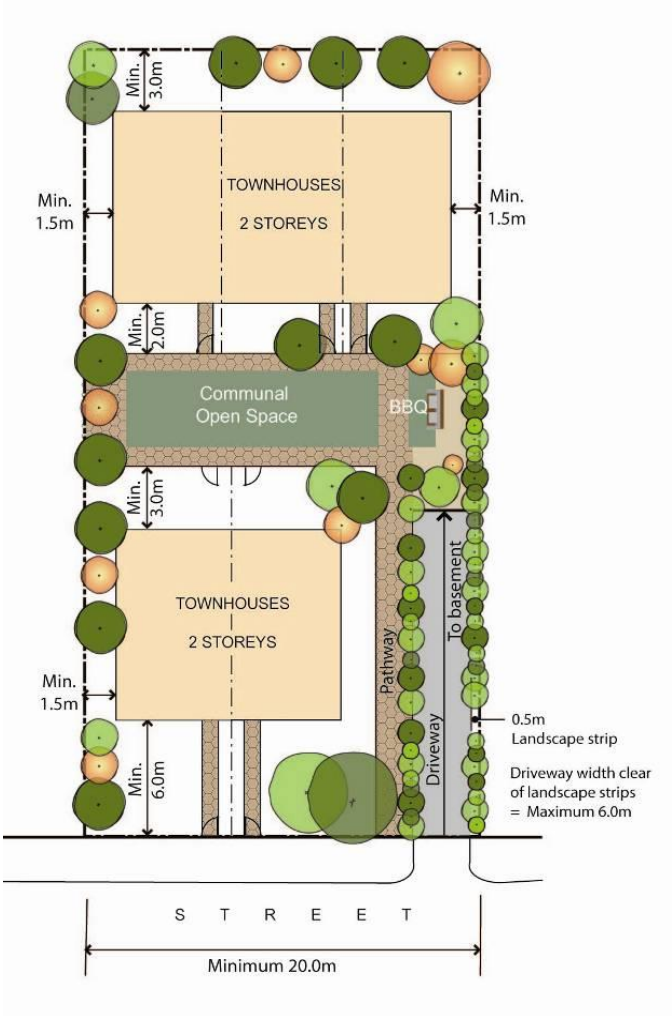


Diagram No. 7 - Setbacks

2.5 Fences

The provisions for fences in the dwelling house section shall apply.

2.6 Landscaped Area

Objectives

The objectives for landscaped area are:

1 To provide privacy and amenity.

2 To retain and provide for significant vegetation, particularly large and medium sized trees and to provide continuous vegetation corridors.

3 To conserve significant natural features of the site.

4 To assist with on-site stormwater management.

Provisions

a) Landscaping is to relate to the ground level of the dwelling by direct access from a living area.

b) A minimum of 35% of the site is to be landscaped area with a minimum width of 3.0m. For attached dwellings, this refers to each allotment individually.

c) Landscaping at front boundaries shared with bicycle routes should be less than 900mm in height and should not impede pedestrian and bicycle routes or reduce visibility to these pathways.

2.7 Cut and Fill

Refer to section 1.6 of this DCP Part for objectives and provisions regarding cut and fill.

2.8 Building Design

Objectives

The objectives for building design are:

1 To ensure that the appearance of development is of high visual quality and addresses the street.

2 To provide attractive building facades which establish identity and contribute to the streetscape.

Provisions

a) Dwellings are to be oriented to face the street with additional dwellings oriented to follow the existing development pattern.

b) The architectural style of development must be sympathetic to the adjoining and surrounding buildings in terms of height, materials, roof pitch and overall building character.

c) Visual continuity of open space corridors and vegetation elements in the block is to be maintained by the position of buildings.

d) The area of the site devoted to driveways and vehicle turning areas should be minimised.

e) On sloping sites car parking may be located below the residential level of the dwelling.

f) On sites with a slope in excess of 5% each dwelling is to have a separate ground floor level with the difference being equal to the average slope of the site.

g) Side and rear facades are to be articulated to provide visual interest using windows, awnings, sun shading devices, upper storey setbacks or insets within the wall alignment.

h) A mix of building materials and/or colours should be used to reduce the appearance of bulk and to integrate the buildings within the local area.

i) Height

I. The maximum number of storeys for attached dwellings or townhouses in the R3 zone is 2 storeys.

II. The maximum number of storeys for a villa is 1 storey.

III. The minimum floor to ceiling height on ground floor is to be 2.7m and upper level(s) 2.4m.

j) The minimum dwelling width is 5m (measured between the external walls).

2.9 Amenity

Objectives

The objectives for amenity are:

1 To ensure that existing and future residents can enjoy reasonable privacy in their dwellings and private open space without being overlooked by adjoining neighbours.

2 To provide reasonable solar access to habitable rooms and recreational areas of new and existing developments.

Provisions

2.9.1 Privacy

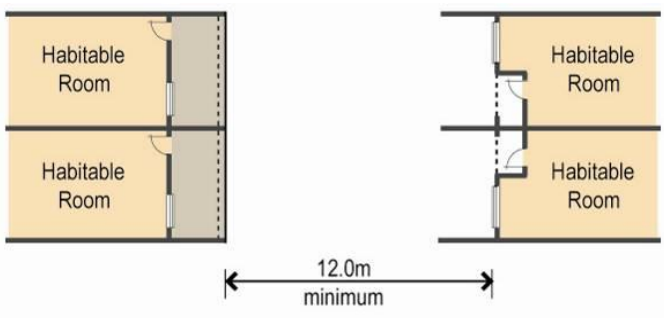
a) Development should be located and oriented to maximise visual and acoustic privacy between buildings.

b) Building elements such as balconies and decks are to be designed to minimise overlooking of living areas and private open spaces of adjoining dwellings.

c) The windows of dwellings are to be located so they do not provide direct and close views into the windows of other dwellings, particularly those of living areas.

d) A minimum of 12m separation is required between buildings within the development site where habitable rooms face habitable rooms.

e) A minimum of 9m separation is required between buildings within the development site where habitable rooms face non-habitable rooms or blank walls.



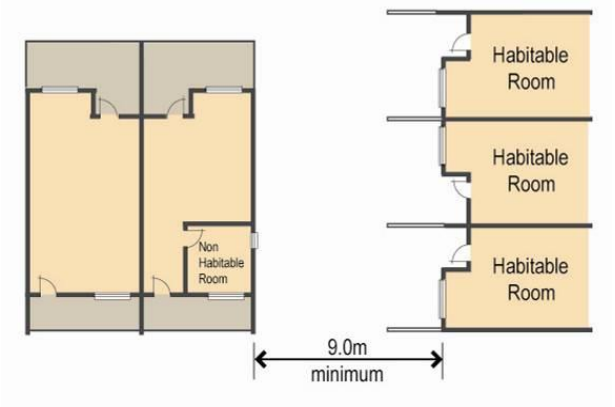


Diagram No. 8 – Building separation

f) A minimum of 3m separation is required between buildings within the development site where non-habitable rooms/blank walls face other non-habitable rooms/ blank walls.

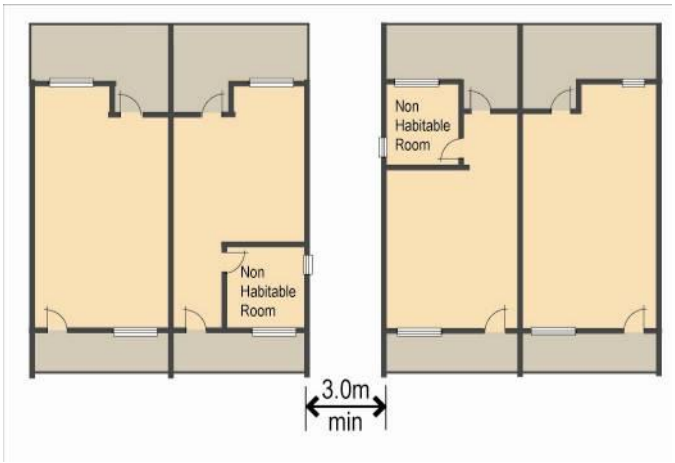


Diagram No. 9 – Building separation

g) Council will require a report by an acoustic consultant to be submitted with development applications for multi dwelling housing developments on sites adjacent to noise generating sources such as major roads and rail corridors (see Part B – General Controls for provisions regarding development near busy roads and rail corridors).

h) Internal habitable rooms of dwellings affected by high levels of external noise are to be designed to achieve internal noise levels of no greater than 50dBA.

2.9.2 Solar Access

a) Dwellings within the development site and any residential development beyond the site are to receive a minimum of 3 hours sunlight to habitable rooms and to at least 50% of the private open space between 9am and 3pm on 21 June.

b) Where existing development currently receives less sunlight than this requirement, this should not be unreasonably reduced. Shadow diagrams are required with development applications to show solar access and the extent of overshadowing.

2.9.3 Private and Communal Open Space

a) Private open space is to be:

I. Directly accessible from the living area of the dwelling.

II. Located so as to maximise solar access.

III. A minimum of 4.0m dimension in any direction.

IV. A minimum unbuilt upon area of 50 m^2 per 2 or 3 bedroom dwelling.

V. A minimum unbuilt upon area of 75 m^2 per 4 or more bedroom dwelling.

b) Private open space may be located on top of semi-basement parking. (Garage and carport roofs are to be non-trafficable).

c) Private open space is to contain paving of at least 10m^2 per dwelling.

d) Private open space will not be permitted in the front setback area.

e) Communal open space is to be provided for a development of more than 5 townhouses or villas and is to be:

I. Located where it is highly visible and directly accessible to the maximum number of dwellings.

II. Designed with an integral role in the site, with uses such as circulation, BBQ, play areas or passive amenity.

III. Integrated with the deep soil zone to provide a landscaped setting with opportunities for large and medium size tree planting.

IV. A minimum of 10% of the site area.

V. Exclusive of shared driveway areas.

2.10 Number of Car Parking, Motorcycle and Bicycle Spaces

Objectives

The objectives for car parking are to:

1 Reduce on-site car parking in proximity to public transport.

2 Provide sufficient parking on site for the convenience of residents with adequate driveway and manoeuvring areas.

3 Minimise the negative visual impact of garages and parking structures.

4 Encourage sustainable transport.

Provisions

a) Garage and carport roofs are to be non-trafficable.

b) Semi-basement parking may protrude up to a maximum of 1.2m above the ground level (existing) subject to achieving a high quality design solution where ventilation grilles are not located to front or rear gardens.

c) Driveway widths are to be kept to a minimum while complying with the relevant Australian Standards.

d) A Transport and Accessibility Report may be required by the Traffic Manager.

C.3 Residential Flat Buildings

3.1 General Objectives

Objectives

The objectives for residential flat buildings are:

1 To achieve a reasonable level of amenity for the residential flat buildings, neighbouring properties and the surrounding area.

2 To achieve sustainable development whilst providing a concentration of residents close to public transport and facilities.

3 To create entrances which provide a desirable residential identity for the development, orient visitors and contribute positively to the streetscape and building facade design.

4 To provide opportunities for lifestyle choice and dwelling mix.

3.2 Density

Provision

a) The minimum site area for residential flat developments is 1,500m^2.

3.3 Building Depth

Objectives

The objectives for building depth are:

1 To ensure that the bulk of the development is in scale with the existing or desired future context.

2 To provide adequate amenity for building occupants in terms of sun access, daylight and natural ventilation.

3 To provide for dual aspect dwellings.

Provisions

a) The maximum residential flat building depth is to be 18 m.

b) This depth is exclusive of balconies.

3.4 Building Width

Objectives

The objectives for building width are:

1 To avoid large continuous building bulk and massing.

2 To ensure that residential flat building responds to the character of the area.

Provision

a) The maximum overall width of the building fronting the street shall be 40m. Greater widths may be permissible if the proposed building articulation is satisfactory in the streetscape.

3.5 Setbacks

Objectives

The objectives for setbacks are:

1 To provide consistency with the desired development pattern of the location.

2 To provide bulk and scale in accordance with the desired future character.

3 To enhance and maintain vegetation corridors through landscaping within front, rear and side setbacks.

4 Side and rear setbacks are to provide building separation, privacy, sunlight, landscaping, ventilation, public views (if appropriate) for the development and its neighbours.

Provisions

3.5.1 Front/Street

a) The front setback of the building shall be consistent with the prevailing setback along the street (refer Diagram No.1). However, Special Residential Areas subject to Block Plans should comply with the setback stated therein. Where there is no predominant setback within the street, and no Block Plan for the locality, the setback should be a minimum of 7.5m.

b) The front setback area shall comprise terraces and gardens to the ground floor dwellings, deep soil zones, driveways and pathways.

c) For corner allotments, the secondary setback requirement is the same as the side setback requirement for the proposed development.

3.5.2 Side and Rear

a) To the boundary within the R4 zone, the minimum side and rear setback shall be:

6m up to 4 storeys

9m for 5-8 storeys

12m for 9 storeys and above.

b) To the boundary shared with R2 and R3 zones the minimum set back will be 9m if habitable rooms/balconies orient this side.

3.5.3 General

a) In general, no part of a building or above ground structure may encroach into a setback zone. Exceptions are:

I. Encroachments into the setback zone of up to 2m may be permitted for underground parking structures no more than 1.2m above ground level (existing), where there is no unreasonable effect on the streetscape. Refer to Diagram 10.

II. Awnings, balconies, blade walls, bay windows and other articulation elements up to a maximum of 500mm.

III. Setback variation may be required or permitted on merit to preserve existing trees.

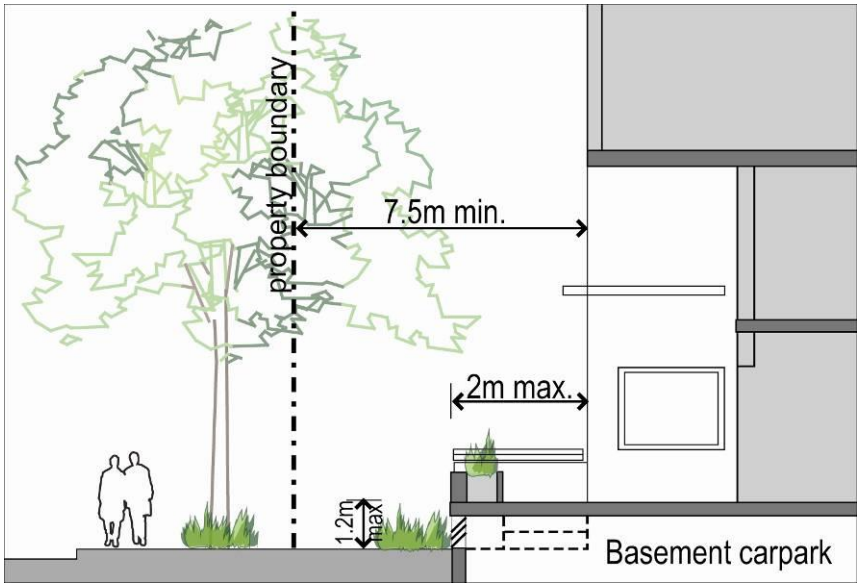


Diagram No. 10 – Terrace to a ground floor dwelling and protrusion of basement carpark

3.6 Building Separation (within developments)

Objectives

The objectives for building separation are:

1 To provide visual and acoustic privacy for existing and new residents.

2 To allow for the provision of appropriately sized open space for recreational activities.

3 To provide deep soil zones for stormwater management and tree planting, where contextual and site conditions allow.

Provisions

a) Unless indicated elsewhere through block controls within the DCP, separation distances within a development are:

Up to four storeys/12 m height:

I. 12m between habitable rooms/balconies

II. 9m between habitable rooms/balconies and non-habitable rooms

III. 6m between non-habitable rooms and blank wall to any other window, light well or balcony.

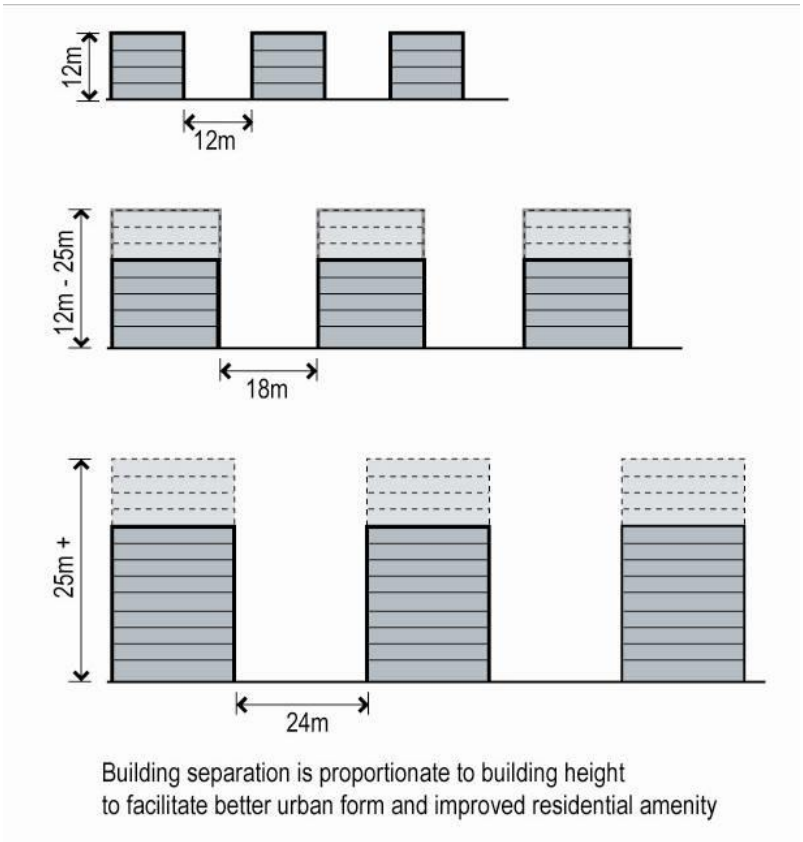


Diagram No. 11 – Building separation for habitable rooms/balconies by height

Five to eight storeys/up to 25 m height:

I. 18 m between habitable rooms/balconies

II. 13 m between habitable rooms/balconies and non-habitable rooms

III. 9 m between non-habitable rooms and blank wall to any other window, well or balcony.

Nine storeys and above/ over 25 m height:

I. 24 m between habitable rooms/balconies

II. 18 m between habitable rooms/balconies and non-habitable rooms

III. 12 m between non-habitable rooms and blank wall to any other window, well or balcony.

b) For mixed use buildings in commercial centres, Council may consider a 10% reduction in separation distances for habitable to non habitable rooms only where it can be demonstrated that achievement of these distances would unreasonably reduce the development potential as indicated in the LEP. Such proposals must show that a high level of privacy, amenity and solar access are achieved.

c) Lightwells are permitted where the following provisions are met:

I. Living rooms are not to have light wells/internal courtyards as the only source of outlook and light,

II. For lightwells with a height up to 18m, the minimum plan dimension is to be 6m,

III. For lightwells with a height between 18 m and 45 m, the minimum plan dimension is to be 9m,

IV. Lightwells are to be directly connected at ground level to streets or lanes to allow air movement in the lightwell,

V. Lightwell spaces may be shared with other uses such as indoor atria, communal space, voids over entry lobbies or indoor planted areas which are visible to dwelling, subject to consideration of noise and other privacy effects.

3.7 Fences

The provisions for fences in the Dwelling Houses and Dual Occupancies section shall apply.

3.8 Excavation

Objectives

The objectives of excavation are:

1 To minimise the impact of excavation on surrounding properties.

2 To achieve reasonable landscaping within developments.

3 To ensure development relates to the street level and the topography.

Provisions

a) All development is to relate to the existing topography of the land at the time of the adoption of this DCP.

b) Excavation for major development is to be contained as close as practicable to the footprint of the development.

c) For development within Centres, Council may consider full site coverage for underground excavation and podium footprints where it is demonstrated that mature landscaping, landscaped area and rainwater retention is able to be provided as roof terraces on podium structures.

d) Uses at ground level are to respond to the slope of the street by stepping frontages and entries to follow the slope.

e) The extent of excavation proposed for underground uses should not compromise the provision of deep soil areas or landscaped areas for residential flat buildings.

3.9 Design of Roof Top Areas

Provisions

a) Roof top areas including podium area are to be designed for use as recreation facilities where practicable and should be of high standard of finish and design. A detailed landscape design and plan of roof top design is to be submitted with the DA.

b) The design of exterior private open space such as roof top gardens is to address visual and acoustic privacy, safety, security, and wind effects.

3.10 Size and mix of dwellings

a) In residential flat buildings and the residential component of mixed use buildings, studio dwellings are to have a minimum size of 40 m^2. This dwelling size is a net area and is to be exclusive of balconies, common corridors and lobbies, car spaces, storage areas outside the dwelling, private and communal open spaces and lift and other services shafts.

b) In residential flat buildings and the residential component of mixed use buildings, development should include a mix of 1, 2 and 3 bedroom units. At least 10% of each unit type should be provided.

3.11 Private Open Space (balconies and terraces)

Objectives

The objectives for private open space are:

1 To provide all dwellings with functional private open space.

2 To ensure that balconies and terraces are integrated into the overall architectural form and detail of residential flat buildings.

3 To contribute to the safety and liveliness of the street by allowing for casual overlooking of the street.

Provisions

a) Provide primary balconies for all above ground dwellings with a minimum depth of 2m and minimum area of 10m^2.

b) Provide a primary terrace for all ground floor dwellings with a minimum depth of 4m and minimum area of 16m^2. All ground floor dwellings are to have direct access to a terrace or front garden area.

c) Balconies and terraces shall not be enclosed under any circumstances.

3.12 Ceiling Heights

Provisions

a) In residential flat buildings, including residential apartments in mixed use buildings, the floor to ceiling height shall be:

I. for non-habitable rooms, a preferred minimum of 2.4m, however a minimum of 2.25m will be permitted

II. for the upper level of a 2 storey apartment, a minimum of 2.4m provided at least 50% of the apartment has a minimum of 2.7m height and

III. for all single level apartments, a minimum of 2.7m.

3.13 Storage

Objective

The objective for storage is to provide adequate storage for everyday households items, sporting, leisure, fitness and hobby equipment within the dwelling.

Provisions

a) In addition to kitchen cupboards and bedroom wardrobes, provide accessible storage facilities at the following rates:

   I. studio dwellings 6m³

   II. one-bedroom dwellings 6m³

   III. two-bedroom dwellings 8m³

   IV. three plus bedroom dwellings 10m³

A minimum of 50% of this storage volume is to be provided within the dwelling accessible from the hall or living area as hall cupboards.

3.14 Solar Access

Objective

The objective for solar access is to provide reasonable solar access to habitable rooms and recreational areas of new and existing developments.

Provisions

These provisions apply to proposed developments and any residential development beyond the site.

a) Habitable rooms in at least 70 percent of dwellings in high density residential developments, should receive a minimum of two hours direct sunlight between 9 am and 3 pm on 21st June, in total between any portions of those rooms. A reasonable proportion of both the common and private open space in those sites is also to receive sunlight during that period, according to the circumstances of the sites.

b) The number of single-aspect dwellings with a southerly aspect (SW-SE) should be limited to a maximum of 10 percent of the total dwellings within a high density residential development. Developments varying from the minimum standard due to site constraints and orientation must demonstrate how energy efficiency is addressed.

c) Where adjacent dwellings and their open space already receive less than the standard hours of sun, new development should seek to maintain this solar access where practicable.

d) Council may accept a reduction in solar access for the subject site and adjacent development if the topography and lot orientation (as distinct from a preferred design) are such that the standard is considered unreasonable.

Shadow diagrams are required with the development application to show solar access and the extent of overshadowing.

3.15 Natural Ventilation

Objectives

The objectives for natural ventilation are:

1 To ensure that dwellings are designed to provide all habitable rooms with direct access to fresh air and to assist in promoting thermal comfort for occupants.

2 To provide natural ventilation in non-habitable rooms, where possible.

3 To reduce energy consumption by minimising the use of mechanical ventilation, particularly air conditioning.

Provisions

a) Sixty percent (60%) of dwellings should be naturally cross ventilated.

b) Ventilation provided to one end of a dwelling via windows onto an open access corridor does not satisfy this requirement due to privacy and acoustics' impacts.

c) Twenty five percent (25%) of kitchens within a development should have access to natural ventilation.

d) Taller buildings must consider providing an open-to-the-air plant room alcoves on each floor of the residential flat building for the common placement of air-conditioning condenser units.

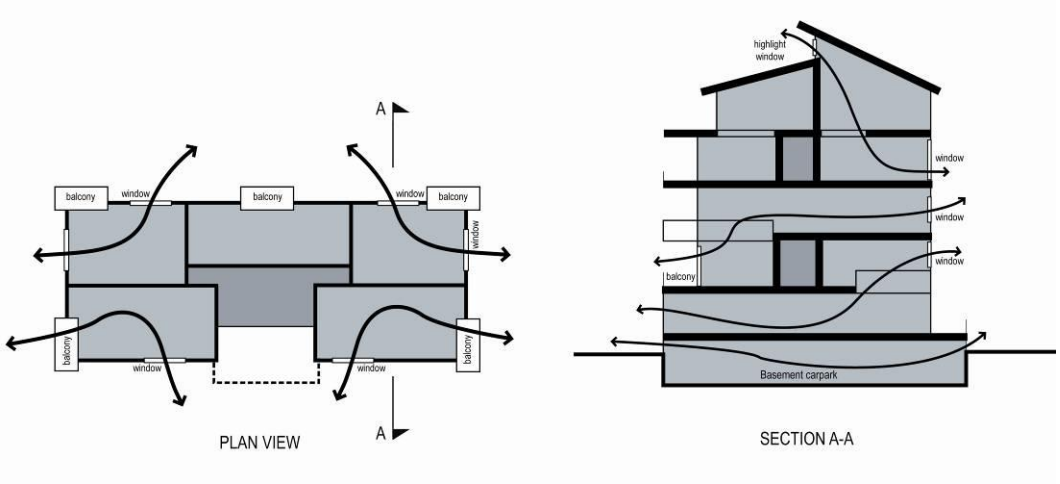


Diagram No. 12 – Natural ventilation in residential flat buildings

3.16 Visual privacy

Objectives

The objectives for visual privacy are:

1 To provide reasonable levels of visual privacy externally and internally, during the day and at night.

2 To provide an outlook and views from principal rooms and private open space without compromising visual privacy.

Provisions

a) Locate and orient new development to encourage visual privacy between buildings on site and adjacent buildings.

b) Use detailed site and building design elements to increase privacy without compromising access to light and air. Detailing may include:

I. Offset windows of dwellings in new developments in relation to adjacent development windows

II. Recessed balconies and/or vertical fins between adjacent balconies

III. Solid or semi-solid balustrades to balconies

IV. Louvres or screen panels to windows and/or balconies

V. Incorporating planter boxes into walls or balustrades to increase the visual separation between areas

VI. Utilise pergolas or shading devices to limit overlooking of lower dwellings or private open space.

3.17 Communal Open Space

Objectives

The objectives for communal open space are:

1 To provide residents with passive and active recreational opportunities.

2 To provide an area on site with soft landscaping and deep soil planting.

3 To ensure that communal open space is useable and attractive.

Provisions

a) A minimum of 25% of the site area is to be provided as communal open space.

b) For mixed use sites, communal open space can be provided on podiums and roof terraces subject to achieving privacy for adjoining users.

3.18 Landscaped Area

Objectives

The objectives for landscaping and deep soil zones are:

1 To provide privacy and amenity.

2 To retain and provide for significant vegetation, particularly large and medium sized trees and to provide continuous vegetation corridors.

3 To conserve significant natural features of the site.

4 To assist with management of the water quality and water table.

5 To conserve and create buildings in a landscaped setting.

Provisions

a) A minimum of 40% of the site area is to be planted, comprising 25% landscaped area and a further minimum of 15% planting on structures or landscaped area.

b) Exceptions may be made in centres for mixed use developments only. In these instances, stormwater treatment measures must be integrated with the design of the residential flat building and sufficient soil depth and volumes to be provided to ensure that mature trees are achievable.

c) Landscaping to front boundaries shared with bicycle routes should be less than 900mm in height and should not impede pedestrian and bicycle routes or reduce visibility to these pathways.

3.19 Planting on structures

Objectives

The objectives for planting on structures are:

1 To contribute to the quality and amenity of communal open space on podiums and in internal courtyards.

2 To encourage the establishment and healthy growth of trees in urban areas.

Provisions

The following are recommended as minimum standards for a range of plant sizes:

a) Large trees (canopy diameter of up to 16m at maturity)
   I. minimum soil volume 150m^3
   II. minimum soil depth 1.3m
   III. minimum soil area 10m x 10m area or equivalent

b) Medium trees (8m canopy diameter at maturity)
   I. minimum soil volume 35m^3
   II. minimum soil depth 1m
   III. approximate soil area 6m x 6m or equivalent

c) Small trees (4m canopy diameter at maturity)
   I. minimum soil volume 9m^3
   II. minimum soil depth 800mm
   III. approximate soil area 3.5m x 3.5m or equivalent

d) Shrubs
   I. minimum soil depths 500-600mm

e) Ground cover
   I. minimum soil depths 300-450mm

f) Turf
   I. minimum soil depths 100-300mm

Any subsurface drainage requirements are in addition to the minimum soil depths mentioned above.

C.4 Residential Subdivision – Dwelling Houses

Objectives

The objectives for residential subdivision are to:

1 Protect amenity while permitting the subdivision of lots in environmentally sensitive areas or where significant impacts on neighbours are likely and careful design is required to minimize those impacts.

2 Allow residential Torrens Title subdivision which retains, and where appropriate, improves existing amenity and streetscape within residential zones.

Provisions

a) Where a development application is proposed for residential subdivision of an existing lot into two or more lots, creates a battle-axe lot, is on environmentally sensitive land or where significant impacts on neighbours are likely and careful design is required to minimize those impacts, Council may impose conditions providing constraints on future buildings that include, but are not limited to, a prescription of maximum building heights, a requirement for the building to be contained within a particular building envelope or building location, or the prescription of a particular design for future development on the land, such constraints may include the placement of an appropriate covenant at the applicant's cost.

b) Applications for approval to construct a new dwelling on an existing battleaxe lot must include information on the following site analysis elements additional to those set out in s.2.4 of this DCP:-

- the precise location, disposition and architectural treatment of those elevations of adjoining dwellings which face the proposed new dwelling, together with plan dimensions showing separation distances between existing and proposed dwellings;
- existing shadow patterns cast by adjoining dwellings and ancillary structures;
- Significant views /view corridors from adjoining dwellings;
- RLs of each floor and of rooftops for each adjoining dwelling together with schematic cross-sections showing the relationships between existing and proposed dwellings.

c) Minimum frontage (allotment width at street) – The minimum frontage permissible is 15 metres (after subdivision). That is, for a regular allotment where a subdivision creates a battleaxe allotment, the minimum frontage is 18m (15m frontage for the front lot plus 3m access handle width). For irregularly shaped blocks, frontages may be less, but a minimum width of 15m is required, where the dwelling is to be constructed, usually not less than 7.5m from the street frontage (see Diagram 13 below).

d) Driveways for battle axe allotments should be designed to ensure that vehicles can enter and leave the lot/s in a forward direction. The minimum width of a battle axe carriageway is to be 3m. Where a driveway provides access for a multiple lot subdivision, a passing bay may be required by Council's Traffic Manager.

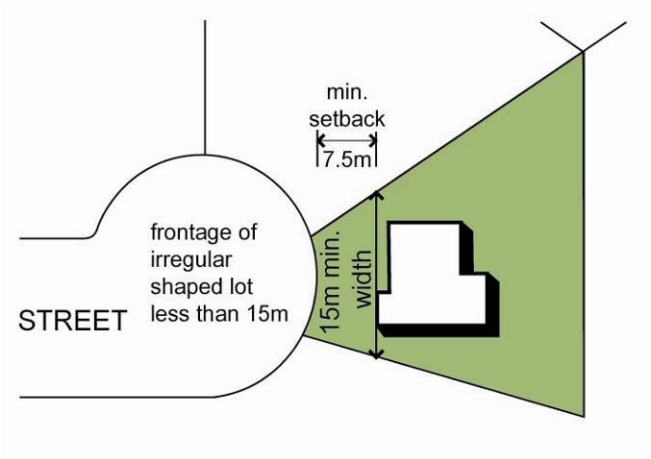


Diagram 13 – Calculation of minimum frontage for subdivision of irregular allotments

e) Each battle axe lot must have direct access to a dedicated public road through the provision of an access handle attached to that lot, or via an access corridor shared by such lots.

f) Applications for a battleaxe subdivision (one new lot) must be accompanied by a site plan and/or Statement of Environmental Effects, plus pre-DA report, that demonstrate that the following matters have been covered in the design:-

i) An example building footprint that provides adequate private open space;
ii) The likelihood that future development for a dwelling would involve the removal of existing mature trees or damage to a threatened species or to an endangered ecological community (see Part J);
iii) The possible existence of heritage items and relics, including those associated with early Aboriginal occupation of the site;
iv) Potential bushfire risks; and
v) In the case of blocks on the foreshores of Sydney Harbour, evidence that a dwelling house can be constructed without infringing the LEP Foreshore Building Line or the DCP Foreshore Setback.
vi) the orientation of any building footprint shall give reasonable access to sunlight to the potential dwelling and recreational areas of the subject site and adjoining premises between 9.00am and 3.00pm on 21st June. See part C section 1.8 for further provisions.
vii) Council may accept reduction in solar access for the subject allotment and adjacent development if the topography and lot orientation is such that the 3 hour standard is considered unachievable.

C.5 Boarding Houses

5.1 General Objectives

Objectives

The objectives for boarding houses are to:

1. Achieve a reasonable level of substantive, objective evidence to support statements about the socio-economic character of boarding houses.
2. Discourage the conversion of new generation boarding house rooms to separate dwellings.

5.2 Social Impact

Provision

a) Social Impact Assessments must be provided for proposed boarding houses.

5.3 Internal Amenity

Provision

a) The maximum kitchen area within a boarding house room is $2m^2$.